

# **GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION**

## **Preparation of the 11th Consultation**

### **Combating discrimination in education**

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

## **GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION**

### **1. Introduction**

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

### **2. Scope of the Consultation**

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**<sup>1</sup> (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**<sup>2</sup>, which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**<sup>3</sup>, and the **Report on the 2022 Transforming Education Summit**<sup>4</sup> which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education<sup>5</sup> and the Tashkent Declaration on Early Childhood Care and Education.<sup>6</sup>

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

### 3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

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<sup>1</sup> <https://www.unesco.org/en/right-education/evolving>

<sup>2</sup> <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

<sup>3</sup> [https://www.un.org/sites/un2.un.org/files/2022/09/sg\\_vision\\_statement\\_on\\_transforming\\_education.pdf](https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf)

<sup>4</sup> [https://www.un.org/sites/un2.un.org/files/report\\_on\\_the\\_2022\\_transforming\\_education\\_summit.pdf](https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf)

<sup>5</sup> [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

<sup>6</sup> [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

#### 4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**<sup>7</sup> in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**<sup>8</sup>, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database<sup>9</sup>. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

#### 5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

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<sup>7</sup> <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

<sup>8</sup> <https://en.unesco.org/education/girls-women-rights>

<sup>9</sup> [UIS Statistics \(unesco.org\)](http://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

## GENERAL INFORMATION:

Country name: NEPAL

Organization or entity responsible for the preparation of the report: Ministry of Education Science and Technology

Name of contact person: Baikuntha Prasad Aryal

Email and telephone number of contact person: [baikunthaparyal@gmail.com](mailto:baikunthaparyal@gmail.com) +977 9851138744

### I. Ratification and applicability of the Convention against Discrimination in Education<sup>10</sup>

- Is your country a State Party to the Convention?

☐ Yes

☒ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☒ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

UNESCO can provide the technical support and organize the workshop to the politician and policy makers for the advocacy on the issue.

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☒ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?<sup>11</sup>

<sup>10</sup>

<https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

<sup>11</sup>

Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☒ No

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

*Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.*

## II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

### 1. Towards an inclusive non-discriminatory education system

*For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.*

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.<sup>12</sup>*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

Constitution of Nepal, fundamental right to education provision, Free and Compulsory Education act, National education Policy, School Education Sector plan, Equity Strategy Index, Girls and Inclusive Education Network Strategy are the major legal and policy provisions.

### 1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation<sup>13</sup>, and ensure equal access to all levels and types of education (please tick all that apply):

<sup>12</sup> Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

<sup>13</sup> See: Article/Paragraph 1(1).

*For reference: This notably is covered under SDG target 4.1 and partly target 4.b<sup>14</sup>*

☒ Legal texts<sup>15</sup> prohibit discrimination and guarantee equal access to education:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please indicate the relevant legal provisions:

Constitution, Education Acts and Regulations, Children Act.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

Right to equality, right to social justice in the constitution  
Ensure equal opportunity of education for all girls and boys without any discrimination  
Provision of brail textbook and sign language in school education for the disable children  
Every citizen shall have the right of equal access to quality education. No one shall be discriminated on any ground to get education.  
Every Nepali community residing in Nepal shall have the right to acquire education in the mother tongue.  
Every citizen shall have the right to become literate, to get early childhood development and education, basic education, secondary education and higher education.

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

<sup>14</sup> Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

<sup>15</sup> Constitution, laws, decrees, regulations, circulars, etc.

Comprehensive education Policy, TVET policy, SDG4: Education 2030 Nepal National Framework, 15<sup>th</sup> and 16<sup>th</sup> periodic plan, School Education Sector Plan.

☒ Combatting discrimination in terms of curriculum:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please provide details:

The provisions of combatting discrimination are incorporated in school education curriculum in different subjects in the form of content and pedagogy.

☒ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

Teacher development and recruitment process

Mobilization of variety of CSOs for advocacy and awareness campaign by doing MOU with them with the ministry and central level implementing agencies.

## 1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

### General measures:

- |                                                                                                   |                                                                                                            |
|---------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Legislation provides for inclusive education for all          | <input checked="" type="checkbox"/> Multiple and flexible learning pathways <sup>17</sup> are provided for |
| <input checked="" type="checkbox"/> Policy measures aim to enhance inclusion in education for all | <input checked="" type="checkbox"/> Curricula and teaching methods are inclusive in design <sup>18</sup>   |

<sup>17</sup> Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

<sup>18</sup> In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.



- ☒ Teachers are trained on inclusive education<sup>16</sup> and to value diversity
- ☒ Multilingual and intercultural education is supported
- ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance

☐ Other:

School Mid-day programme for all students from pre-primary to grade 5.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Based on all these policy initiatives, school education sector plan and other sectorial plans have been developed and implemented with the provision of equity in education.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Economic disparities among the people, geographical disparities are facing now. The curriculum and curricula development for the people of varieties of local languages and making available of educational facilities on these language are seemed challenging.

#### **Other relevant general measures, including gender equality**

- |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li><input checked="" type="checkbox"/> Legislation provides for gender equality in education</li> <li><input checked="" type="checkbox"/> Policy measures aim to enhance gender equality</li> <li><input checked="" type="checkbox"/> Gender-responsive education sector planning is undertaken</li> <li><input checked="" type="checkbox"/> Providing positive or affirmative action measures</li> <li><input checked="" type="checkbox"/> Providing financial incentives and fellowships</li> <li><input checked="" type="checkbox"/> Teachers are trained (initial and in-service) on gender equality</li> </ul> | <ul style="list-style-type: none"> <li><input type="checkbox"/> All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education</li> <li><input checked="" type="checkbox"/> Re-entry programmes for young mothers are provided for</li> <li><input checked="" type="checkbox"/> Ensuring safe and adequate gender-sensitive sanitation facilities<sup>20</sup></li> <li><input checked="" type="checkbox"/> Curricula are rid of all stereotypes<sup>21</sup> and bias</li> <li><input type="checkbox"/> Ensuring gender parity in science, technology, engineering and mathematics (STEM)</li> </ul> |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

<sup>16</sup> Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

<sup>20</sup> 'Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

<sup>21</sup> Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

☒ Teachers are trained to combat stigmatisation<sup>19</sup>

☐ Ensuring gender parity in technical and vocational training education and training (TVET)

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The legal and other initiatives for the gender equality are:

- Reservation provision for female in government job opportunities like: teachers, professors, civil service etc.
- Girls' scholarship provision in school education
- Free sanitary pad in schools for all girls
- Gender responsive budget provision

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

Cultural barriers for empowering female in every sector including education

Economic inequality among the people

Limited job opportunity

- Does the legal minimum age for marriage conform to international standards (18 years) <sup>22</sup>:

*Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.*

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

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<sup>19</sup> ' Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

<sup>22</sup> Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

[%E0%A4%B8%E0%A4%82%E0%A4%B9%E0%A4%BF%E0%A4%A4%E0%A4%BE-%E0%A5%A8%E0%A5%A6%E0%A5%AD%E0%A5%AA.pdf](#)

### **National minorities:**

*For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.*

- |                                                                                                                                           |                                                                                                                                 |
|-------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Legislation provides for the right to education of national minorities                                | <input type="checkbox"/> Teachers are trained on intercultural education                                                        |
| <input checked="" type="checkbox"/> Policy measures aim to enhance the right to education of national minorities                          | <input type="checkbox"/> Teachers are trained to combat stigmatisation <sup>24</sup>                                            |
| <input checked="" type="checkbox"/> Policy elaboration includes consultations with local communities                                      | <input checked="" type="checkbox"/> Multilingual and intercultural education are supported                                      |
| <input checked="" type="checkbox"/> The right to carry out their own educational activities is legally guaranteed for national minorities | <input checked="" type="checkbox"/> Native language instruction is ensured for national minorities                              |
| <input type="checkbox"/> Educational standards are established for educational institutions run by national minorities                    | <input checked="" type="checkbox"/> Adapting curricula and teaching and learning methods to their needs for national minorities |
| <input checked="" type="checkbox"/> Positive or affirmative action measures are provided for national minorities                          | <input checked="" type="checkbox"/> Curricula are rid of all stereotypes <sup>25</sup> and bias                                 |
| <input checked="" type="checkbox"/> Financial incentives and fellowships are provided for national minorities                             |                                                                                                                                 |
| <input type="checkbox"/> Other <sup>23</sup> :                                                                                            |                                                                                                                                 |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

*Constitution, Free and compulsory Education Act, Education Sector Plan (SESP), Periodic development plan (15<sup>th</sup> Plan, 16<sup>th</sup> Plan) etc.*

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

*Promoting them from their mother tongue school/curricula provision*

*Discrimination and Exclusion*

<sup>23</sup> Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

<sup>24</sup> Supra note 15.

<sup>25</sup> Supra note 16.

### **Indigenous people:**

- |                                                                                                                                         |                                                                                                                               |
|-----------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Legislation provides for the right to education of indigenous people                                | <input checked="" type="checkbox"/> Financial incentives and fellowships are provided for indigenous people                   |
| <input checked="" type="checkbox"/> Policy measures aim to enhance the right to education of indigenous people                          | <input type="checkbox"/> Teachers are trained on intercultural education                                                      |
| <input checked="" type="checkbox"/> Policy elaboration includes consultations with local communities                                    | <input checked="" type="checkbox"/> Teachers are trained to combat stigmatisation <sup>26</sup>                               |
| <input checked="" type="checkbox"/> The right to carry out their own educational activities is legally guaranteed for indigenous people | <input type="checkbox"/> Multilingual and intercultural education are supported                                               |
| <input type="checkbox"/> Educational standards are established for educational institutions run by indigenous people                    | <input type="checkbox"/> Native language instruction is ensured                                                               |
| <input checked="" type="checkbox"/> Positive or affirmative action measures are provided for indigenous people                          | <input checked="" type="checkbox"/> Adapting curricula and teaching and learning methods to their needs for indigenous people |
|                                                                                                                                         | <input checked="" type="checkbox"/> Curricula are rid of all stereotypes <sup>27</sup> and bias                               |
| <input type="checkbox"/> Other:                                                                                                         |                                                                                                                               |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

*Constitution, Free and compulsory Education Act, Education Sector Plan (SESP), Periodic development plan (15<sup>th</sup> Plan, 16<sup>th</sup> Plan) etc.*

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

*Promoting them from their mother tongue school/curricula provision*

*Skill upgrading and accreditation of the indigenous skill and knowledge*

*Discrimination and Exclusion*

### **People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations<sup>28</sup>:**

- |                                                                                             |                                                                                           |
|---------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Legislation provides for their right to education       | <input checked="" type="checkbox"/> Financial incentives and fellowships are provided for |
| <input checked="" type="checkbox"/> Policy measures aim to enhance their right to education | <input type="checkbox"/> Auxiliary assistance is provided                                 |

<sup>26</sup> Supra note 15.

<sup>27</sup> Supra note 16.

<sup>28</sup> 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

- ☒ Inclusion in mainstream schools is ensured
  - ☐ Positive or affirmative action measures are provided for
  - ☒ All administrative barriers to access education are removed
  - ☒ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers<sup>29</sup> are provided for
  - ☐ Teachers are specifically trained to ensure their inclusion
  - ☒ Teachers are trained to combat stigmatisation<sup>30</sup>
  - ☐ Other:
- ☒ Multiple and flexible learning pathways<sup>31</sup> are provided
  - ☒ Curricula are rid of all stereotypes<sup>32</sup> and bias
  - ☒ Accelerated learning programmes are provided
  - ☒ Non-formal and/or alternative education programmes are provided
  - ☐ Language classes to newcomers are provided for
  - ☐ Multilingualism and intercultural education are encouraged

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

*Constitution, Free and compulsory Education Act, Education Sector Plan (SESP), Periodic development plan (15<sup>th</sup> Plan, 16<sup>th</sup> Plan) etc.*

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☒ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

#### **People with disabilities:**

- ☒ Legislation provides for their right to education
- ☒ Mainstream teachers are specifically trained on disabilities

<sup>29</sup> While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

<sup>30</sup> Supra note 15.

<sup>31</sup> Supra note 13

<sup>32</sup> Supra note 16.

- |                                                                                                       |                                                                                                 |
|-------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Policy measures aim to enhance their right to education           | <input checked="" type="checkbox"/> Teachers are trained to combat stigmatisation <sup>33</sup> |
| <input checked="" type="checkbox"/> Inclusion in mainstream schools is ensured                        | <input checked="" type="checkbox"/> Auxiliary assistance is provided                            |
| <input checked="" type="checkbox"/> Special schools are used as resource centers to inclusive schools | <input checked="" type="checkbox"/> Curricula and teaching and learning methods are adapted     |
| <input checked="" type="checkbox"/> Positive or affirmative action measures are provided              | <input checked="" type="checkbox"/> Curricula are rid of all stereotypes <sup>34</sup> and bias |
| <input checked="" type="checkbox"/> Financial incentives and fellowships are provided                 | <input checked="" type="checkbox"/> Education infrastructure and learning materials are adapted |
| <input type="checkbox"/> Other                                                                        |                                                                                                 |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

*Constitution, Education Act and Regulation, Comprehensive Education Policy, Free and compulsory Education Act, Education Sector Plan (SESP), Periodic development plan (15<sup>th</sup> Plan, 16<sup>th</sup> Plan) etc.*

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

*Accessibility, Attitudinal Barriers, Lack of support service, Curriculum Adaptation, Social and Cultural Norms, Transition to Higher Education and Employment*

#### **Students from poor households:**

- |                                                                                                                                        |                                                                                                 |
|----------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Financial incentives and fellowships for school enrolment are provided                             | <input checked="" type="checkbox"/> Teachers are trained to combat stigmatisation <sup>35</sup> |
| <input type="checkbox"/> Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | <input type="checkbox"/> Curricula are rid of all stereotypes <sup>36</sup> and bias            |
| <input checked="" type="checkbox"/> Positive or affirmative action measures are provided                                               |                                                                                                 |
| <input type="checkbox"/> Other:                                                                                                        |                                                                                                 |

Scholarship provision, residential facilities

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

---

<sup>33</sup> Supra note 15.  
<sup>34</sup> Supra note 16.  
<sup>35</sup> Supra note 15.  
<sup>36</sup> Supra note 16.

*Constitution, Education Act and Regulation, Comprehensive Education Policy, Free and compulsory Education Act, Education Sector Plan (SESP), Periodic development plan (15<sup>th</sup> Plan, 16<sup>th</sup> Plan) etc.*

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

*Social Exclusion, Financial Constraints, Health and Nutrition, Child Labor, Lack of Parental Involvement*

## 2. Progress made with respect to implementing the right to education across all levels and forms of education

### 2.1 Early childhood care and education

*For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation<sup>37</sup> and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education<sup>38</sup>. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.*

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- |                                                                                                  |                                                                                                                      |
|--------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Prior to pre-primary education, ECCE services are free       | <input checked="" type="checkbox"/> ECCE services respect a child’s need for early cognitive and social development, |
| <input checked="" type="checkbox"/> Prior to pre-primary education, ECCE services are affordable | foundational learning, responsive care,                                                                              |
| <input checked="" type="checkbox"/> ECCE services are accessible on a non-discriminatory basis   | nutrition, health, safety, protection, and play.                                                                     |

- Please elaborate further on the measures taken:

- Is compulsory and free of charge pre-primary education available?

☒ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

One year Pre-primary for the age of four-year children.

<sup>37</sup> Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.  
<sup>38</sup> Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

☐ Pre-primary education is **not** compulsory.

☒ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

*Enrolment/admission, School meal, Tuition fee and the educational material cost used in the pre-primary class*

☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

☐ Limited access

☐ Issues of equity and inclusion

☐ Poor quality programmes

☐ Other:

☐ Poor learning outcomes

☒ Low number of professionally trained educators

☒ Lack of support to families

- Please elaborate. Brief quantitative information may be added.

*Almost ECD teachers are female, the marriage of the female teachers and their migration causes the lack of the trained ECD teachers.*

## 2.2 Primary and secondary education

*For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”*

### Primary education

- Please provide the age of enrolment and duration of primary education:

*Eight years basic (Primary/Lower Basic in Nepal for the age 5-9, and upper basic for the age 10-12 ) for the age of 5-12 years children.*

- Is primary education compulsory and free of charge?



- ☒ Primary education is compulsory
- ☐ Primary education is **not** compulsory.
- ☒ Primary education is free of charge.
- ☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

*Constitution, Education Act and Regulation, Comprehensive Education Policy, Free and compulsory Education Act, The Act Relating to Children, 2018, Education Sector Plan (SESP), Periodic development plan (15<sup>th</sup> Plan, 16<sup>th</sup> Plan) etc. For the free primary education means- free in admission, textbook, tuition fee, exam fee and school mid-day meal.*

- What challenges were encountered in realizing primary education?

- |                                                             |                                                                                             |
|-------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| <input type="checkbox"/> Limited access                     | <input checked="" type="checkbox"/> Poor learning outcomes in foundation literacy           |
| <input type="checkbox"/> Issues of equity and inclusion     | <input checked="" type="checkbox"/> Poor learning outcomes in numeracy                      |
| <input checked="" type="checkbox"/> High dropout rates      | <input checked="" type="checkbox"/> Poor learning outcomes in social and emotional learning |
| <input checked="" type="checkbox"/> Poor quality programmes | <input type="checkbox"/> Other poor learning outcomes                                       |
| <input type="checkbox"/> Other:                             | <input type="checkbox"/> Disparity in learning outcomes                                     |
|                                                             | <input checked="" type="checkbox"/> Low number of professionally trained teachers           |

- Please elaborate. Brief quantitative information may be added.

High dropout rate basically at secondary level, and the low achievement at all levels, particularly for the students of community schools.

## **Secondary education**

*In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.*

- Please provide the age of enrolment and duration of lower secondary education:

*Four years secondary education for the age of 13-16.*

- Please provide the age of enrolment and duration of upper secondary education:

*Four years secondary education for the age of 13-16.*

- Is lower and upper secondary education compulsory and free of charge?

- ☐ Lower secondary education is compulsory.
- ☐ Lower secondary education is **not** compulsory.
- ☒ Lower secondary education is free of charge.
- ☐ Lower secondary education is **not** free of charge.
- ☐ Upper secondary education is compulsory.
- ☐ Upper secondary education is **not** compulsory.
- ☒ Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

*Constitution, Education Act and Regulation, Comprehensive Education Policy, Free and compulsory Education Act, The Act Relating to Children, 2018, Education Sector Plan (SESP), Periodic development plan (15<sup>th</sup> Plan, 16<sup>th</sup> Plan) etc.*

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

*For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.*

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

*Constitution, Education Act and Regulation, , Free and compulsory Education Act, The Act Relating to Children, 2018, Education Sector Plan (SESP), Labor Act.*

- What challenges were encountered in realizing secondary education?

- ☐ Limited access
- ☒ Poor learning outcomes
- ☐ Issues of equity and inclusion
- ☐ Low readiness of primary graduates
- ☐ High dropout rates
- ☐ Low number of professionally trained teachers
- ☐ Poor quality programmes
- ☐ Other:

Link of knowledge with skill and employability, Abroad migration after completing secondary education

- Please elaborate. Brief quantitative information may be added.

*National assessment of Student Achievement shows the learning outcomes of Secondary education is very poor and decreasing trend in the recent years. Annually about 200 thousands graduates are going abroad for searching better education and better job.*

## 2.3 Higher education

*For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3<sup>39</sup>, and target 4.4<sup>40</sup>. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.*

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked):

- ☐ Higher education is free of charge
- ☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☐ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

<sup>39</sup> Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

<sup>40</sup> Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

University Act and bilaws of individual university.

- What challenges were encountered in realizing higher education?

- |                                                             |                                                                                                                    |
|-------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Limited access          | <input checked="" type="checkbox"/> Low number of professionally trained professors                                |
| <input type="checkbox"/> Issues of equity and inclusion     |                                                                                                                    |
| <input checked="" type="checkbox"/> Poor quality programmes | <input checked="" type="checkbox"/> Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| <input checked="" type="checkbox"/> Poor learning outcomes  |                                                                                                                    |
| <input type="checkbox"/> Other:                             |                                                                                                                    |

*Higher education course can not address the needs of the market. Retention of talents.*

- Please elaborate. Brief quantitative information may be added.

*About 200 thousands graduates are going abroad for better education and job due to the uncertainty of the incountry employability. Limited opportunity in the new subjects or areas for the study as per the demand and the quality whatever provided by the HE institutions is not satisfactory.*

## 2.4 Adult education and alternative learning

*For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”*

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities

- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☐ Provision of free of charge career guidance and counselling
- ☐ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

- What challenges were encountered in realizing adult learning and education?

- |                                                         |                                                                         |
|---------------------------------------------------------|-------------------------------------------------------------------------|
| <input type="checkbox"/> Limited access                 | <input checked="" type="checkbox"/> Limited funding                     |
| <input type="checkbox"/> Issues of equity and inclusion | <input checked="" type="checkbox"/> Poor learning outcomes              |
| <input type="checkbox"/> Poor quality programmes        | <input type="checkbox"/> Low number of professionally trained educators |
| <input type="checkbox"/> Other:                         |                                                                         |

- Please elaborate. Brief quantitative information may be added.

Major challenge is the accriodiattion of the knowledge and skills from nonformal education still not sestematize.

### 3. Quality education provision and learning environment

*For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.*

#### 3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☒ State monitoring and inspections
- ☒ Health and sanitation

☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

☒ Infrastructure

☒ Curriculum

☒ Student-teacher ratio

☐ School fees (if relevant)

☐ Other

- Please elaborate on each of the measures taken:

*You may include information on policies, protocols or codes of conduct.*

*Education Regulation, School management National standard, Building code*

- What challenges were encountered in realizing quality education?

☒ Non-supportive or inadequate learning environments

☐ Violence in schools

☒ Cost of education

☐ Conflicts or crises

☐ Other:

☒ Low quality educational infrastructure and materials

☒ Inadequate parental support to education

☐ Long distances to schools

- Please elaborate. Brief quantitative information may be added.

Per capita funding in education particularly in school education is very nominal. Due to the frequent earthquake, the educational infrastructures are damaged and so inadequate, as a result, lack of supporting environment in the schools are the causes for the low quality. Resilient school education is still the challenge in Nepalese context.

### 3.2 Education personnel

*For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.*

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☒ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☐ Establishment of performance monitoring systems.
- ☐ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

Minimum qualification has defined to be a teacher and there is a robust mechanism for the teacher selection and recruitment from Teacher Service Commission. The provision of the reservation system in teachers selection candidates from the different groups including disable and women have the equal access to be a teacher.

- What challenges were encountered in the education personnel?

- |                                                                                             |                                                                                          |
|---------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Shortages of teaching staff                             | <input checked="" type="checkbox"/> Low quality educational infrastructure and materials |
| <input checked="" type="checkbox"/> Lack of qualified, trained and motivated teaching staff | <input checked="" type="checkbox"/> High student – teacher ratio                         |
| <input checked="" type="checkbox"/> Lack of training centres                                |                                                                                          |
| <input type="checkbox"/> Other:                                                             |                                                                                          |

- Please elaborate. Brief quantitative information may be added.

Still big number of teachers are required as per the class and student's ratio. Low quality educational infrastructure and the absence of regular mentoring and supervision system and pedagogical teacher support system is not in function, as a result lack of motivation among the teachers for their profession.

### 3.3 Respect for human rights and fundamental freedoms

*For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.<sup>41</sup> Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.*

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☒ Curriculum includes human rights education.

☐ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

- Please elaborate on each of the measures taken:

In Social Study Subject textbook of grade 4-12, there are provisions of human right education.

### 3.4 Non-state actors in education

*For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision<sup>42</sup>.*

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☐ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation<sup>43</sup> explicitly apply to non-state educational institutions. Please specify:

About 20% of the total schools of the country are private schools, providing the education by charging fee for the students. Apart from these many CSOs, NGOs are in function for the educational development.

☒ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

<sup>41</sup> Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

<sup>42</sup> Private, faith-based, NGOs, community actors.

<sup>43</sup> See: Article/Paragraph 1(1).



☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

☐ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☒ Registration
- ☒ State monitoring and inspections
- ☒ Qualifications of teachers
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools)
- ☒ Infrastructure
- ☒ Curriculum
- ☒ Student-teacher ratio
- ☒ School fees
- ☒ School closures
- ☐ Other

- [Please elaborate:](#)

- [What challenges were encountered in non-state education provision?](#)

- |                                                                                          |                                                                                        |
|------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Low quality educational infrastructure and materials | <input type="checkbox"/> Issues in terms of equity and inclusion                       |
| <input checked="" type="checkbox"/> Low number of professionally trained teachers        | <input checked="" type="checkbox"/> Weak government regulatory and monitoring capacity |
| <input type="checkbox"/> High student – teacher ratio                                    |                                                                                        |
| <input type="checkbox"/> Other:                                                          |                                                                                        |

- Please elaborate. Brief quantitative information may be added.

### 3.5 Digital education

*Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion<sup>44</sup>.*

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

☐ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

Digital Nepal Framework, ICT in Education Masterplan, Computer Science Curriculum are provisioned.

☐ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☐ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☐ Measures to remove barriers to accessing digital content<sup>45</sup>, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☐ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☐ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

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<sup>44</sup> Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

<sup>45</sup> Lack of internet connection, basic infrastructure or devices.

- What challenges were encountered in digital education provision (check all that apply)?

- |                                                                                                                                                                     |                                                                                                                                      |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | <input checked="" type="checkbox"/> Limited access to internet and/or electricity                                                    |
| <input checked="" type="checkbox"/> Lack of equity and inclusion in digital learning solutions                                                                      | <input checked="" type="checkbox"/> Limited access to hardware (devices, chargers, etc.)                                             |
| <input checked="" type="checkbox"/> inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks            | <input checked="" type="checkbox"/> Difficulty in regulating the use of digital education solutions                                  |
| <input type="checkbox"/> Other:                                                                                                                                     | <input checked="" type="checkbox"/> Difficulty in sustainably financing digital education solutions at national scale                |
|                                                                                                                                                                     | <input checked="" type="checkbox"/> Lack of digital skills development for meaningful use of digital technology in teaching practice |
|                                                                                                                                                                     | <input checked="" type="checkbox"/> Disjointed or fragmented solutions that are not centrally systematized or regulated              |

- Please elaborate. Brief quantitative information may be added.

There are major four challenges in digital education in Nepal: ICT infrastructure, connectivity, digital curricula and the capacity of the teachers. The 2021 Flash report shows that, only 50.2% of the 28,833 community schools that were operating had electricity supplies, 41.9% of them (nearly 12,000 schools) had computer facilities and only 18.7% (nearly 5,400) were connected to the internet. Of all schools, 41.9% (about 12,000 schools) have computer facilities.

#### 4 Strengthening governance systems

*For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).*

- Please indicate the measures taken in terms of governance (several items may be ticked):

- ☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.
- ☒ Monitoring results are made public. [Please provide the link:](https://cehrd.gov.np/file_data/mediacenter_files/media_file-17-428622471.pdf)

[https://cehrd.gov.np/file\\_data/mediacenter\\_files/media\\_file-17-428622471.pdf](https://cehrd.gov.np/file_data/mediacenter_files/media_file-17-428622471.pdf)

- ☐ Monitoring processes are participatory, inclusive and regular.
- ☒ Sector-wide and multisector approach is adopted to education governance.
- ☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.
- ☒ The decision-making process for the allocation of resources to education is transparent.
- ☐ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ☒ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

- What challenges were encountered in terms of governance?

- |                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li><input checked="" type="checkbox"/> Budgetary constraints</li> <li><input type="checkbox"/> Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels</li> <li><input type="checkbox"/> Poor dialogue with teachers' trade unions</li> <li><input type="checkbox"/> Other:</li> </ul> | <ul style="list-style-type: none"> <li><input type="checkbox"/> Absence of supportive/ inconsistent/obsolete legal and policy environment</li> <li><input checked="" type="checkbox"/> Lack or weakness of monitoring systems – including the lack of reliable data</li> </ul> |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

- Please elaborate. Brief quantitative information may be added.

### III. Methods used to draw the attention of the various authorities in the country to the instruments

*For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.*

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other:

Awareness campian.